



United States Department of the Interior

FISH AND WILDLIFE SERVICE

Ecological Services
4000 Airport Parkway
Cheyenne, Wyoming 82001



ES-61411
sl/MINES/WY5528.sl

February 21, 2002

Mr. John Wagner
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Building, 3 West
122 W. 25th St.
Cheyenne, WY 82001

Dear Mr. Wagner:

Thank you for the notification regarding the annual report for Mountain Cement's Weaver Limestone Quarry (permit number 658) in Albany County, Wyoming. Photographs of the permit area indicate the area may provide suitable habitat for nesting mountain plovers. The mountain plover has been proposed for listing as a threatened species under the Endangered Species Act of 1973, as amended. Mountain plovers are known to occur in the Laramie area. We encourage the permittee to take all necessary precautions to avoid impacts to these species as a result of mining activities.

If you have further questions on this subject, please contact Pat Deibert of my staff at the letterhead address or phone (307) 772-2374, extension 26.

Sincerely,

for Michael M. Long
Field Supervisor
Wyoming Field Office

cc: Statewide Habitat Protection, WGFD, Cheyenne, WY

Mountain Cement Co. 2-27-02



The State
of Wyoming



Department of Environmental Quality

Jim Geringer, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH (307) 777-7758 FAX 777-3610	ABANDONED MINES (307) 777-6145 FAX 777-6462	AIR QUALITY (307) 777-7391 FAX 777-5616	INDUSTRIAL SITING (307) 777-7368 FAX 777-6937	LAND QUALITY (307) 777-7756 FAX 777-5864	SOLID & HAZ. WASTE (307) 777-7752 FAX 777-5973	WATER QUALITY (307) 777-7781 FAX 777-5973
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February 12, 2002

Mr. William Sansing
Mountain Cement Co.
5 Sand Creek Road
Laramie, WY 82070

**RE: Permit 658, Mountain Cement Company (MCC), Weaver Quarry,
2001-2002 Annual Report Review**

Dear Mr. Sansing:

The Wyoming Department of Environmental Quality (WDEQ) Land Quality Division (LQD) received the above referenced report on February 1, 2002. LQD has reviewed the information contained in the 2001-2002 Annual Report and has determined that the report is acceptable. However, LQD has the following comments that must be addressed in the 2002-2003 Annual Report.

MCC has yet to submit ground water monitoring information as required. LQD approved a ground water monitoring revision, Change No. 2, on October 2, 2001. This revision approved a July-August sampling schedule to avoid winter related sampling problems.

MCC reports 18,500 yards of overburden are available for use in highwall reduction. It is estimated that 129,000 yards of backfill would be required to meet post mining topography requirements. The 2001-2001 Annual Report bond estimate must include a cost for the reduction of all highwalls.

MCC has not upgraded the Annual Report Map to show sediment control structures as required in past Annual Inspection/Reviews. The 2001-2002 Annual Report Map must be modified to indicate Sediment control structures that are being used to control sediment.

If you should have any questions regarding this letter or the attached review/inspection report, please feel free to contact the District I office.

Sincerely,

Bill Hogg

Bill Hogg
Land Quality Division

From: Joyce Holmes
To: deibert, pat; long, michael
Date: 2/1/02 12:40PM
Subject: annual report received

LQD received the 2001-2002 annual report for Permit 658, Mountain Cement Co. for the Weaver Limestone Quarry on 2-1-02.

Please review.

thanks

faxed to Fish and Wildlife at 772-2358 on 2-1-02

CC: Hogg, Bill; Wagner, John



MOUNTAIN
CEMENT COMPANY

5 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

JSJH
BH ✓

January 30, 2002



Ms. Joyce Holmes
District I
Land Quality Division
Herschler Building
122 West 25th Street
Cheyenne, WY 82002

Dear Ms. Holmes:

Please find enclosed the 2001 Annual Report for the Weaver Limestone Quarry, **Permit No. 658**. I delivered the two annual report maps for this permitted quarry yesterday afternoon when I met with Mr. Hogg and Mr. Wagner. Mr. Hogg has them in his office.

Please do not hesitate to call me if you have any questions or comments. My extension number is #121.

Sincerely,

William A. Sansing
Environmental Manager
Mountain Cement Company

enclosure

**MOUNTAIN CEMENT COMPANY
PERMIT #658-WEAVER LIMESTONE QUARRY**

**ANNUAL REPORT
AND
MINE AND RECLAMATION PLANS**

MARCH 1, 2001-FEBRUARY 28, 2002



SUBMITTED TO:

**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY DIVISION
HERSCHLER BUILDING
CHEYENNE, WYOMING**

PREPARED BY:

**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WY
(307) 745-4879**

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ATTACHMENT

Two Annual Report Maps, March 1, 2001 - February 28, 2002

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

- 3

- (d) Tabulate all out-of-pit spoil volumes, date of placement and illustrate on map.

15,000 CY-overburden (1997)

3,500 CY-overburden (2000)

18,500 CY-total since mine start-up

- (e) Tabulate quantity of commodity mined by years.

124,376 tons of limestone mined in 1997

100,500 tons of limestone mined in 1998

148,520 tons of limestone mined in 1999

361,150 tons of limestone mined in 2000

530,950 tons of limestone mined in 2001

1,265,496 tons of limestone mined since start-up



- (f) Describe any new construction during the report period and illustrate on map; include:

- | | |
|--|--|
| 1. Shop facilities, erection sites | None |
| 2. Roads | The entrance road to the Harney Creek crossing was paved. |
| 3. Culverts | None |
| 4. Diversion ditches, collector ditches, interceptor ditches, etc. | None |
| 5. Sediment ponds, containment ponds | None |
| 6. Monitoring sites | None |

- (g) Describe any environmental problem areas and a proposed plan for mitigating them-illustrate on a map.

- | | |
|--|-------------|
| 1. Pit stability problems | None |
| 2. Subsidence | None |
| 3. Accidental water discharge, dam failure, etc. | None |
| 4. Slumping or sliding | None |
| 5. Revegetation problem areas | None |

4. Reclamation:

- A. Tabulate the acreage completed during the report period and illustrate on map. Distinguish between: **None completed this report period.**

- | |
|---|
| 1. Backfilled, graded, and contoured. Including date of approval for coal permits. |
| 2. Topsoiled |
| 3. Seeded |
| 4. Reseeded |
| 5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material. |

- B. Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit. **None completed**



1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
2. Type of seed used for seeding during the report period.
3. Dates of seeding during the report period.
4. Seeding procedures used
5. Rate of seed application
6. Type and rate of any fertilizer applied
7. Type and rate of mulch applied
8. Rate of irrigation water applied
9. Any deviations to the approved reclamation plan including, in addition to the items above, changes to the contour or location of post mining features

- E. Describe results of previous revegetation efforts; include:
- | | |
|--|-------------|
| 1. Types of seed that have germinated and are growing | None |
| 2. Types of seed that are not growing successfully | None |
| 3. Areas experiencing problems with weeds and weed types | None |
| 4. Significant erosional problems | None |
| 5. Areas of unsuitable overburden on the surface | None |
| 6. Procedures used or proposed to correct these problems | N/A |
- F. Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e., grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e., spoil, haul roads, facilities removal, etc.) on a per-acre basis. **None**
5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreage should be tabulated and illustrated on a map. **See Mine Plan Report and Annual Report Map.**
6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreage should be tabulated and illustrated on a map. **See Reclamation Plan Report.**

NOTE:

On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.

7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:



7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:

A. Groundwater analyses

Groundwater sampling was not completed during the report period. I will have to check with the DEQ if a yearly schedule has been submitted and approved by the LDQ.

B. Surface water analyses and discharge data

None

C. Precipitation data

None

D. Subsidence monitoring

None

E. Overburden analyses

None

F. Topsoil quantities-compare calculated and actual

N/A

G. Vegetation data

None

H. Wildlife data

None

I. A map showing and identifying monitoring locations

None

8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardage to be moved. Actual yardage to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b).

See Table II

9. Supply any additional information as requested by the Division related to:

A. Notices of Violation

None

B. Orders

None

C. Permit Stipulations

None

D. Other Special Conditions

None

INTRODUCTION

Mountain Cement Company continued to mine at the Weaver Quarry WDEQ/LQD Permit No. 658 during the past report period. The last mining activity occurred during December, 2001.

This activity was located in the northwest corner of the permit area, as described in the Mine Plan.

MINE PLAN

The following mine plan describes the actual mining activities for the 2001-2002 report period, and likely future mining operations for the 2002-2003 report period at Mountain Cement Company's Weaver Limestone Quarry, Permit No. 658.

Past Mining Activities: Mining continued in the north west corner of the permit area in the SW $\frac{1}{4}$ of Section 26 during the 2001-2002 report period. A total of approximately 20,850 cubic yards of topsoil and 18,500 cubic yards of overburden are contained in the stockpiles. An additional 2,300 cubic yards of topsoil is stockpiled along the side of the haulroad.

Future Mining Activities: Mountain Cement plans to continue mining the site during the next report period, removing approximately 500,000 tons of limestone. Mining will occur in the same pit, expanding it further to the east. It will not be necessary to disturb any more land since the area east of the pit has already been stripped of topsoil and overburden in 2000.

RECLAMATION PLAN

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

Reclamation has not yet been initiated at this mine site. 1997-1998 was the first year limestone was quarried at this site.

Future Reclamation Activities:

No reclamation is planned for the next report period. Reclamation will follow the Reclamation Plan, which states that reclamation of each mine sequence section will begin within two years after mining is completed in that section. Reclamation will begin after mining progresses further into Section II.



ESTIMATED RECLAMATION COSTS

Mountain Cement Company's reclamation performance bond estimate for current the disturbances and expected disturbances during the 2002-2003 report period are itemized in Table II. The total reclamation costs plus an additional twenty percent contingency cost, is calculated to be approximately \$77,700. Based on these calculations, the current bond in the amount of \$120,000 is deemed to be sufficient.

TABLE I - Description of Weaver Quarry lands. (Includes acreage projected to be disturbed during the upcoming report period)

LAND DESCRIPTION	ACRES
PERMIT AREA	1372.5
AFFECTED AREA	36.3
PROECTED DISTURBANCE FOR 2002-2003	0.0
LANDS REQUIRING AREA BOND COST	36.3
LANDS REQUIRING FULL INCREMENTAL BOND COST	36.3
LANDS REQUIRING PARTIAL INCREMENTAL BOND COST (Reseeding)	0
LANDS WITH REQUESTED FULL BOND RELEASE, > 2 YEARS	0
LANDS W/ APPROVED FULL BOND RELEASE	0.0
SUBTOTAL(INCREMENTAL BOND TOTAL)	36.3
NATIVE LANDS	1336.2
TOTAL OF BONDED, BOND RELEASED AND NATIVE LANDS	1372.5



TABLE II - Estimated Reclamation Costs for Disturbances through February 28, 2002 and Projected Disturbances for the 2002-2003 Report Period, Weaver Quarry, LQD Permit No. 658.

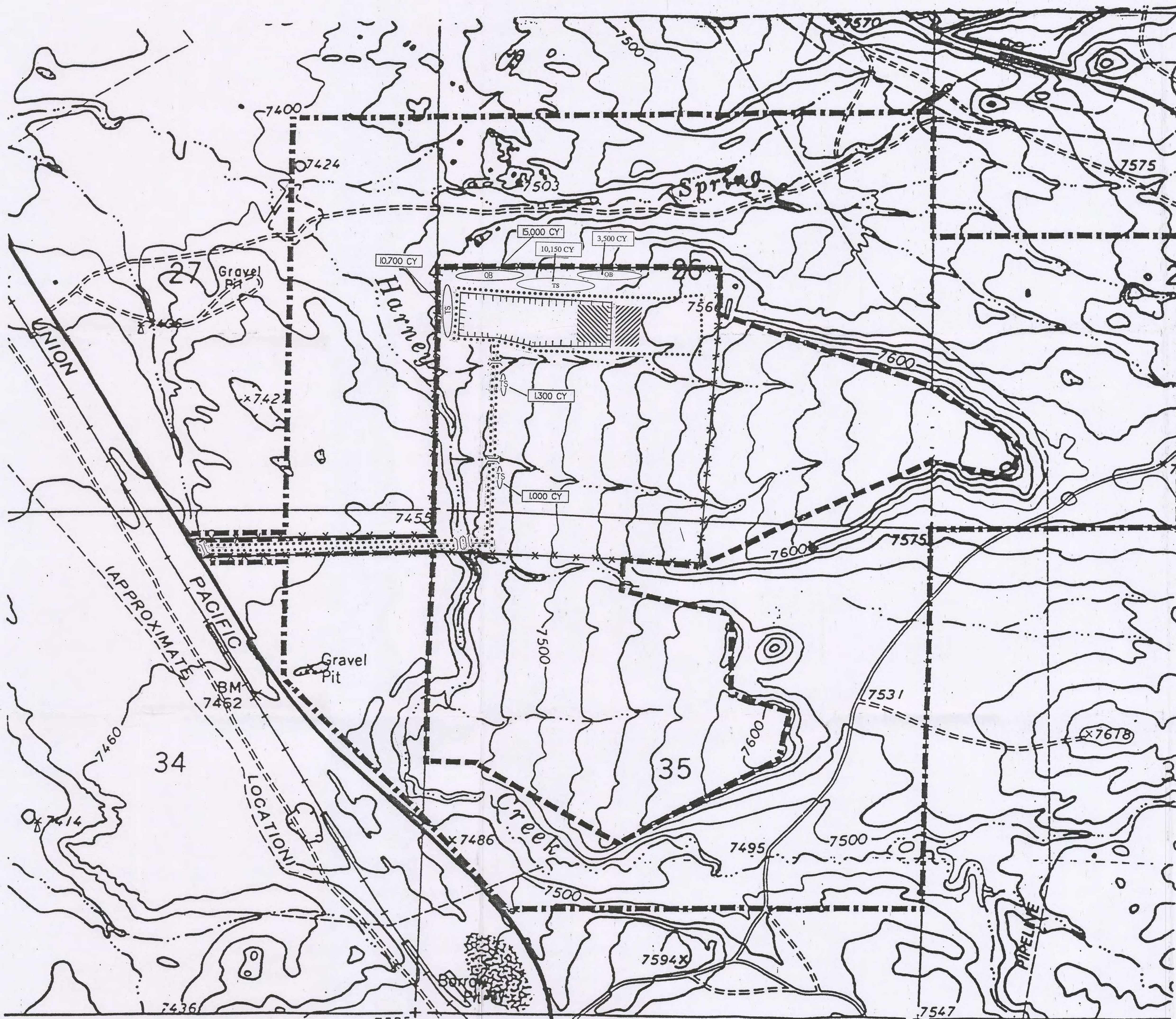
BOND TYPE	RECLAMATION ACTIVITY	APPENDIX LQD, Guideline #12	AVERAGE ONE-WAY HAUL (ft)	UNIT	UNIT COST (\$/unit)	TOTAL (\$)
Area Bond	Backfill + Recontouring	C <i>637 Scrapper</i>	750	18,500 CY of Overburden	5% Resisting Grade @ \$0.70/CY	12,950
Incremental Bond	Miscellaneous Overburden Redistribution	A-G, E1	N/A			
	Demolition (culverts)	J	N/A	5 UNITS (20 ft sections)	69.70/20 ft. section + 8,500	9,370
	Scarification or Ripping (Roads)	II I	N/A	3.0 AC 2.2 AC	663.93/acre 474.92/acre of asphalt	1,992 1,045
	Topsoil Redistribution	C <i>637 Scrapper</i>	750	23,150 CY of Topsoil	5% Resisting Grade @ \$0.70/CY	16,205
	Final Grading	G	N/A	36.3 AC	38.45/acre	1,395
	Seeding only	Q	N/A	0 AC	250.00/acre	0
	Seed, Mulch, Prepare soil + Fencing	Q	N/A	36.3 AC + 0 ft	600.00/acre 1.70	21,780

SUBTOTAL \$64,740
20% DEQ CONTINGENCY \$12,950

TOTAL \$77,700

Total Land Quality Bond Amount = \$120,000

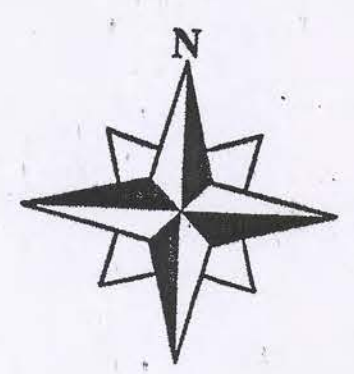




5000 LF x 21.83 yds/LF
103,136 yd
Haulways
alone
No
Floor

LEGEND

TS	TOPSOIL STOCKPILE
OB	OVERBURDEN STOCKPILE
.....	MINING AREA
- - - -	PERMIT BOUNDARY
- - - -	AFFECTED AREA BOUNDARY
	MINED AREA; PIT WALLS AS OF 2/28/02
	AREA MINED BETWEEN 3/1/01 AND 2/28/02
	PROJECTED AREA TO BE MINED BETWEEN 3/1/02 AND 2/28/03
— — —	CULVERT
*****	FENCE LINE



Annual Report Map
WEAVER LIMESTONE QUARRY
Permit No. 658
March 1, 2001 to February 28, 2002

Mountain Cement Company
5 Sand Creek Road
Laramie, Wyoming
(307) 745-4879

Township 14N, Range 73W, Sections 26 & 35

SCALE 1" = 500'
CONTOUR INTERVAL 20'
Revised 1/18/02 WS





The State
of Wyoming



Department of Environmental Quality

Jim Geringer, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH (307) 777-7758 FAX 777-3610	ABANDONED MINES (307) 777-6145 FAX 777-6462	AIR QUALITY (307) 777-7391 FAX 777-5616	INDUSTRIAL SITING (307) 777-7369 FAX 777-6937	LAND QUALITY (307) 777-7756 FAX 777-5864	SOLID & HAZ. WASTE (307) 777-7752 FAX 777-5973	WATER QUALITY (307) 777-7781 FAX 777-5973
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January 3, 2002

Mr. William Sansing
Mountain Cement (Weaver Pit)
5 Sand Creek Road
Laramie, WY 8208

RE: Permit No. 658

Dear Mr. Sansing:

Enclosed is an Annual Report Form for your use in reporting all mining and reclamation activities in the referenced permit area since the last report. The new report will be due on or up to thirty days before February 28, 2002, as required by W.S. §35-11-411. Upon receipt and review of the report, you will be contacted by a District staff member to arrange the annual inspection.

Please contact me if you have any questions.

Sincerely,

Joyce Holmes
District I
Land Quality Division

/jh
Enclosure